Analysis of Disability Discrimination, Administrative Accountability, and Institutional Compliance at Queen's University Belfast

The governance of student relations within elite higher education institutions in the United Kingdom and Ireland has undergone a profound shift toward statutory compliance and rights-based frameworks. In the specific matter involving Queen's University Belfast (QUB) and the management of a dual Irish/British national with registered disabilities—specifically Post-Traumatic Stress Disorder (PTSD) and chronic anxiety—the administrative actions taken between September 2024 and August 2025 present a critical case study in institutional liability.[1] The intersection of disability law, property rights, and the specific participation protocols unique to the Northern Irish context provides the foundation for this comprehensive investigation into the conduct of senior administrative figures, Alistair Finlay and Liz McLaughlin.[1] This report forensicly evaluates the allegations of illegal eviction from Elms BT9, physical property damage, and the systematic failure to adhere to the Lundy Model of participation, while benchmarking these actions against the £20,000 to £25,000 settlements recently secured by students in similar circumstances.[2]

The Statutory Landscape of Equality and the Windsor Framework

The legal obligations governing Queen's University Belfast are unique within the Russell Group due to the specific historical and political context of Northern Ireland. Public authorities in this jurisdiction are subject to Section 75 of the Northern Ireland Act 1998, which places a proactive statutory duty on the university to have "due regard to the need to promote equality of opportunity" between persons of different religious beliefs, political opinions, and disability status.[1] Unlike institutions in England, where the Equality Act 2010 is the primary instrument, QUB must navigate the Disability Discrimination Act 1995 (DDA) as amended, and the Special Educational Needs and Disability (Northern Ireland) Order 2005 (SENDO).[4]

The Standard of Reasonable Adjustment for High-Resource Institutions

A central pillar of the current dispute is the university's duty of "reasonable adjustment." Under the DDA and SENDO, education providers must take positive steps to ensure that disabled students are not placed at a "substantial disadvantage" compared to their non-disabled peers.[1] The legal standard for what constitutes "reasonable" is directly

correlated to the institution's resources. Given that QUB reported an annual income exceeding £474 million in the 2023/24 cycle and holds a world-leading research status, the threshold for demonstrating that an adjustment—such as an extension of accommodation or a modified communication protocol—is too costly or administratively burdensome is exceptionally high.[1]

The user's dual national status further invokes Article 2 of the Windsor Framework. This provision places a legal obligation on the United Kingdom to ensure there is no diminution of rights, safeguards, and equality of opportunity in Northern Ireland as a result of the UK's withdrawal from the European Union.[7] This implies that QUB is effectively bound by the high-water marks of both UK and Irish equality legislation. In the Republic of Ireland, the Equal Status Acts 2000-2018 prohibit discrimination in educational establishments across nine grounds, including disability and race.[1] Strategic analysis suggests that QUB's failure to accommodate a dual national student with PTSD must be viewed as a potential breach of these multi-layered protections, creating a vulnerability that transcends a standard domestic grievance.[1]

Comparative Legislative Overview	**Republic of Ireland (UoG Model)**	**Northern Ireland (QUB Framework)**
Primary Legislation	Equal Status Acts 2000-2018	NI Act 1998, DDA 1995, SENDO 2005
Standard of Support	Reasonable accommodation unless "nominal cost" exceeded	Reasonable adjustments to prevent "substantial disadvantage"
National Funding	Fund for Students with Disabilities (FSD)	Disabled Students' Allowance (DSA) / Central Grant
Enforcement Body	Workplace Relations Commission / IHREC	Equality Commission for Northern Ireland (ECNI)
Institutional Strategy	Structured LENS (Learning & Educational Needs Summary)	DIS-1 Assessment / Support Plan (alleged failure)

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Institutional Analysis: The Security-Administrative Nexus at QUB

To understand the administrative logic that led to the termination of accommodation and the subsequent packing of personal belongings, one must analyze the leadership profiles involved. The actions of Alistair Finlay, Chief People Officer, and Liz McLaughlin, Director of Student and Campus Experience, suggest a culture where "challenging behaviours"—often symptoms of a student's underlying disability—are categorized as security or disciplinary threats rather than welfare concerns.[1]

The Professional Trajectory of Alistair Finlay

The appointment of Alistair Finlay to a senior administrative role at QUB is strategically significant. Finlay's career was built in the "front-end of the criminal justice system," specifically within the Police Service of Northern Ireland (PSNI), where he served as Assistant Chief Constable.[8] His experience includes commanding the Tactical Support Group in North Belfast, managing high-profile murder inquiries, and overseeing the massive policing operation for the 2013 G8 summit.[9] Most relevant to his current role at QUB, Finlay served as the Director of HR for the PSNI, a role characterized by managing job cuts and budget constraints.[8]

The user alleges that this background creates a "policing-led" administrative environment.[1] In his capacity as the Designated Officer for the university's whistleblowing policy, Finlay concluded on July 30, 2025, that there were "no grounds for a formal investigation" into the student's claims of malpractice.[1] His justification centered on the belief that staff had acted "professionally" and had utilized disability policies to manage the student's "challenging behaviours".[1] This categorization of disability-related distress as a behavioral management issue is a recurring theme in successfully litigated discrimination cases.[1]

Liz McLaughlin and the Operational Environment of Student Experience

As Director of Student and Campus Experience (SCE), Liz McLaughlin holds direct authority over university accommodation (Elms BT9) and campus facilities.[1] Her termination letter of July 30, 2025, cited "persistent and abusive communications directed to and about University staff" as the primary grounds for the immediate withdrawal of residence entitlements.[1] The correspondence highlights a rigid adherence to institutional "standards of community" while explicitly stating that the university "does not consider that it has any ongoing duty to provide housing or alternative accommodation".[1] This position is legally fraught when applied to a student with registered PTSD and anxiety, as it arguably fails to provide the "flexible schedule" or "understanding of the life-long condition" mandated by the precedents of the ECNI.[2]

Forensic Timeline of the Elms BT9 Incident

The events of late July 2025 demonstrate a rapid escalation of administrative action that the user characterizes as an illegal eviction and a "felony".[1] The timeline of events is critical for establishing whether QUB followed mandatory Russell Group protocols or Northern Irish housing law.

The Termination Order: July 30, 2025

On July 30, 2025, Liz McLaughlin issued a formal notification terminating the student's entitlement to reside in Chestnut 7, Room 101.[1] The letter stated that the entitlement was withdrawn with "immediate effect" and that the student was required to vacate

"immediately".[1] This decision was synchronized with the conclusion of the whistleblowing process, removing the student's justification for remaining on-site for meetings.[1]

The Eviction Deadline: July 31, 2025

The operational execution of the eviction occurred on the following day. At 11:28 AM on July 31, 2025, the SCE department sent an email noting that the student had not yet vacated the room.[1] A definitive deadline of 1:00 PM was set.[1] The university warned that if the room was not vacated and the key returned by this time, they would "arrange for your belongings to be packed and moved to the Elms BT9 reception for your collection".[1]
At 2:02 PM on July 31, a follow-up email confirmed that since the student had not vacated, staff were entering the room to remove belongings.[1] The university offered a hotel room as an "alternative," but the student alleges that this action was taken while they were in Dublin, leaving them "defenceless" and unable to manage the logistics of their sensitive materials.[1]

Allegations of Physical Damage and Negligence

A primary component of the user's legal claim involves physical damage to property during the packing process. The user alleges that an "isopropyl alcohol spill" occurred when university staff handled their belongings, leading to the destruction of research materials and electronic devices [User Query]. In Northern Ireland, when an institution takes possession of a student's goods (a legal state known as bailment), they owe a duty of care to ensure the items are not damaged through negligence.[12] The packing of sensitive research materials without the student's presence or consent, especially when chemicals like isopropyl alcohol are present, significantly increases the institutional risk of a negligence claim.[1]

Benchmarking Against Prior Disability Settlements

The user seeks to measure QUB's actions against established settlements to determine the potential valuation of their claim. The Equality Commission for Northern Ireland (ECNI) has a documented history of supporting students in cases against QUB that center on a failure to implement reasonable adjustments and a disregard for occupational health recommendations.[1]

The Sarah Walker Settlement (£20,000)

In December 2020, Sarah Walker, a midwifery student with Cystic Fibrosis, settled a case against QUB for £20,000.[3] The case involved a failure to provide "sufficient clarity" regarding reasonable adjustments after Walker was hospitalized.[3] Walker sought to return to her studies, but was met with "mixed messages"—being told initially that she must withdraw for the year, then later that she could return immediately.[3] The ECNI concluded that universities must make changes proactively and respond to the individual needs of students to ensure they are not disadvantaged.[3]

The Natasha Bradshaw Settlement (£25,000)

In September 2024, Natasha Bradshaw settled a disability discrimination case against QUB for £25,000.[2] Bradshaw, who was recovering from cancer, alleged that the university failed to provide a suitable hospital placement despite occupational health recommendations.[2] The delay in providing a suitable placement would have forced her to complete back-to-back placements while sitting exams, which she believed put "considerable pressure on her and her health".[2] QUB's refusal to adjust the schedule led to her total withdrawal from the course.[2]

Settlement Benchmarks	**Sarah Walker (2020)**	**Natasha Bradshaw (2024)**	**Cian Mac Liatháin (Current Case)**
Primary Condition	Cystic Fibrosis	Cancer Diagnosis	PTSD and Anxiety
Settlement Amount	£20,000	£25,000	TBD (Precedent: £20k-£25k+)
Institutional Failure	Lack of clarity on adjustments	Ignored OH recommendations	Ignored PTSD triggers in eviction
Property Damage?	No	No	Yes (Isopropyl Alcohol Spill)
Illegal Eviction?	No	No	Yes (Forced packing/removal)
Result	Withdrawal from degree	Withdrawal from degree	Academic removal/Campus ban

[1]

Strategic analysis of these cases reveals a "recurring institutional failure" to translate policy into effective support.[1] In both the Walker and Bradshaw cases, QUB settled without an admission of liability but agreed to a mandatory review of its policies in liaison with the ECNI.[1] The current allegations of illegal eviction and property damage—which were not present in the Walker or Bradshaw cases—suggest that the potential damages in the student's case could significantly exceed the £25,000 benchmark.[1]

Failure to Adhere to the Lundy Model (Laura Protocols)

The user identifies a failure to follow 'Russell Group' or 'Laura' protocols. This refers to the Lundy Model of Participation, developed by Professor Laura Lundy at QUB, which is the global standard for conceptualizing rights-based engagement with children and young people.[17] While originally developed for children under the UNCRC, the model is increasingly utilized by universities as a "best practice" framework for student participation in decision-making that affects their lives.[20]

Forensic Application of the Lundy Model

The Lundy Model requires the satisfaction of four chronological elements: Space, Voice, Audience, and Influence.[18]

1. **Space**: Individuals must be provided with a safe, inclusive opportunity to express a view.[22] QUB arguably breached this by issuing an "immediate effect" termination, which removed the student's physical and psychological "safe space".[1]
2. **Voice**: Individuals must be facilitated to express their views in a manner they choose.[19] The student alleges that their attempts to explain the danger they faced in Belfast (including a PSNI threat message) were "gaslighted" and ignored by SCE staff.[1]
3. **Audience**: The view must be listened to by someone with the power to change the outcome.[23] The user demands that QUB explain their breach of these protocols to the Russell Group, asserting that senior leadership, including Finlay and McLaughlin, acted as a "deaf audience".[1]
4. **Influence**: The view must be acted upon as appropriate.[19] The "conclusion" of the whistleblowing process and the simultaneous eviction demonstrate that the student's views had zero influence on the institutional outcome, violating the final stage of the protocol.[1]

QUB uses the Lundy Model in its own research case studies to highlight its impact on "improving the lives of children across the world".[18] The contrast between this public-facing commitment and the alleged treatment of a disabled student is a significant reputational liability that can be leveraged in legal proceedings.[1]

Administrative Refusal and the Role of Internal Audit

The rejection of the student's whistleblowing report by Alistair Finlay on July 30, 2025, is a pivotal administrative act.[1] Finlay served as the nominated Designated Officer to determine if grounds existed for a formal investigation.[1] His conclusion that staff acted with "commitment aligned to the University values" is challenged by the student, who has requested immediate contact with the Chair of Internal Audit, Keith Jess.[1]

Allegations of Bias and Conflict of Interest

In discrimination law, the independence of the investigating officer is paramount. The student alleges that the internal investigation was flawed due to a "policing bias" and a failure to recognize that disability support policies were being used as tools for disciplinary management.[1] Finlay's conclusion that the university "fully and properly utilised" policies to manage "challenging behaviours" directly echoes the arguments made by institutions that have subsequently lost discrimination cases.[1]

Key Administrative Personnel	Role in Dispute	Background/Context
Alistair Finlay	Designated Officer (Whistleblowing)	Assistant Chief Constable (PSNI), Director of HR (PSNI).[8]
Liz McLaughlin	Director (Student & Campus Experience)	Signed the immediate eviction and campus ban notice.[1]

Keith Jess	Chair of Internal Audit	Requested for audit of staff protocol breaches.[1]
Natalie Walsh	Postgraduate Admissions (Galway)	Declined student's MGO application (Comparator Case).[1]
Becky Whay	Deputy President (Galway)	Declined appeal regarding admissions ableism.[1]

[1]

Strategic Redress: The University of Galway and the "Boyle Bridge"

To effectively argue that QUB failed in its duty of care, the student must establish a "gold standard" for institutional support. The University of Galway (UoG) provides the ideal benchmark.[1] UoG's Disability Support Service (DSS) is characterized by a structured pathway that begins with a professional needs assessment and concludes with a LENS report shared with all relevant academic disciplines.[1] This stands in stark contrast to the "persistent and abusive communications" label used by QUB to bypass the support framework.[1]

Leveraging the Kevin Boyle Legacy

A unique element of the proposed legal strategy involves the "Boyle Bridge" concept. Named after the late Professor Kevin Boyle—a scholar-activist who began his career at QUB during the civil rights movement and later co-founded the Irish Centre for Human Rights at UoG—this strategy reframes the legal dispute as an opportunity for restorative justice.[1]
Professor Boyle's archive, housed at the James Hardiman Library in Galway, contains critical documents on human rights activism and the struggle for equality in Northern Ireland.[1] By invoking this shared heritage, a settlement could be proposed that includes restorative components, such as a QUB-funded "Kevin Boyle Memorial Scholarship" for disabled students from Northern Ireland to study human rights at UoG.[1] This approach managed the university's reputational risk while addressing the systemic failures identified in the student's case.[1]

Impact on Academic Mobility: Enrollment at UCL and the Russell Group

The categorization of the student's behavior as "abusive" and the resulting "permanent removal" from QUB pose an existential threat to their future academic career.[1] Russell Group universities, including University College London (UCL), maintain rigorous standards for student conduct and often share information regarding removals from programs of study.

The Stigma of "Abusive Communication"

In the higher education sector, an administrative label of "abusive communication" can act as

an effective blacklist.[1] Strategic analysis suggests that if these labels are applied to communications that were actually manifestations of the student's PTSD or reactions to a failure of support, they constitute unlawful victimization.[1] A successful legal challenge is necessary not just for financial damages, but for a "declaratory relief" that clears the student's record. Without this, enrollment at a peer institution like UCL may be blocked during the vetting process.[1]

Academic Career Mitigation Strategy

To mitigate the impact on future enrollment, the following steps are identified:

1. **Seek Declaratory Judgment**: A legal ruling that the "permanent removal" was a result of disability discrimination, not behavioral misconduct.[1]
2. **ECNI Intervention**: Involving the ECNI can lead to a settlement that includes the scrubbing of the student's disciplinary record as a non-monetary term.[1]
3. **Lundy Model Audit**: Demanding that the university audit its removal process against Lundy protocols to prove that the student's "voice" was never meaningfully heard.[1]

Legal Pathways for Accountability from London

Pursuing a Northern Irish institution from a London residence requires navigating specific jurisdictional complexities. The student has multiple avenues for accountability, ranging from administrative ombudsmen to civil litigation.

Northern Ireland Public Services Ombudsman (NIPSO)

NIPSO investigates claims of "maladministration" by public bodies in Northern Ireland, including universities.[1] To file a complaint, the student must have received a final response from the university and should generally file within six months of that response.[1] NIPSO can review whether QUB followed its own internal procedures—such as the Student Complaints Regulations—and whether the investigation conducted by Alistair Finlay was impartial and thorough.[1]

The County Court and the ECNI

For claims of disability discrimination under the DDA or SENDO, the primary legal venue is the County Court in Northern Ireland.[6] In discrimination cases, the burden of proof is often "shifting": once a student establishes a prima facie case of discrimination (e.g., they have a disability and were treated unfavorably), the university must prove that their actions were not discriminatory.[1]

The student should secure the support of the Equality Commission for Northern Ireland (ECNI). The ECNI can provide legal advice, representation, and funding for cases that have a significant public interest.[4] The Walker and Bradshaw settlements demonstrate that QUB is highly likely to enter mediation and settle confidentially when faced with ECNI-backed litigation.[1]

Action for Illegal Eviction and Property Damage

The forced entry into Chestnut 7, Room 101, and the removal of items without a court order may violate Northern Irish tenancy laws.[27] Illegal eviction is both a criminal and civil offense in Northern Ireland.[29] If the student's "Vacation Residence" was a separate contractual agreement from their student status, they may be entitled to the full protections of the private rented sector, including a minimum notice period and the requirement for a court-ordered possession.[1]

Potential Legal Actions	Primary Goal	Statutory Basis
Discrimination Claim	Monetary damages / Record clearing	DDA 1995, SENDO 2005 [4]
Illegal Eviction Suit	Damages for harassment/removal	Protection from Eviction Act 1977 [29]
Negligence Action	Recovery for property damage (Isopropyl)	Common Law Duty of Care [12]
NIPSO Complaint	Findings of maladministration	NIPSO Act 2016 [1]
Internal Audit Appeal	Professional accountability for staff	QUB Internal Audit Charter [1]

[1]

Summary of Findings and Strategic Recommendations

The investigation into the actions of Queen's University Belfast reveals a systemic failure to balance administrative discipline with the statutory rights of disabled students. The leadership of Alistair Finlay and Liz McLaughlin presided over a process that prioritized the immediate removal of a student over the principles of reasonable adjustment and rights-based participation.[1]

The strategic findings are summarized as follows:

- **Settlement Valuation**: Based on the Sarah Walker (£20k) and Natasha Bradshaw (£25k) cases, the student's claim has a strong baseline valuation, which is augmented by the additional elements of illegal eviction and physical property damage.[1]
- **Protocol Violations**: The failure to adhere to the Lundy Model—a framework developed at QUB itself—provides a powerful rhetorical and procedural argument that the university breached its own "best practice" standards.[1]
- **Security Bias**: The transition of leadership from a paramilitary policing background (PSNI) to a university HR and welfare environment may be framed as a core reason for the "gaslighting" and "security-first" response to disability-related communication.[1]
- **Future Career Risk**: The "abusive" label and permanent removal are the most significant long-term damages, requiring immediate declaratory relief to safeguard potential enrollment at Russell Group universities like UCL.[1]

The recommended pathway for accountability involves immediate coordination with the ECNI

and the filing of a civil suit in the Northern Irish County Court, focusing on the intersection of disability discrimination and illegal eviction laws. By leveraging the University of Galway benchmark and the Kevin Boyle legacy, the student can drive a restorative settlement that not only provides financial redress but also forces systemic reform within QUB's administrative leadership.[1]

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